



DECISION

Complaint No. : POS/5320/KHE/236/2020

Name and Address of the Complainant : Mr. Muhammad Rafiq, M/s. Ashfaq Electric Services, R-5 Gulshan-e-Umar, Scheme-33, Opposite Race Course Club, Main University Road, Malir Cantt, Karachi.

Name of the Agency Complained against : Education Works Larkana

Name & Designation of Investigation Officer : Syed Farrukh Habib
Director, Regional Office, Karachi (East)

Subject :- **ALLEGED INORDINATE DELAY IN PAYMENT OF OUTSTANDING DUES AMOUNTING TO RS.412,000/- ON ACCOUNT OF WORK DONE BY THE COMPLAINANT'S FIRM AS PER WORK ORDER DATED 13.02.2019.**

THE COMPLAINT

Mr. Muhammad Rafiq filed a complaint dated 29.10.2020, stating that his firm, M/S Ashraf Electric Services, was awarded the work of "Rehabilitation, improvement/Renovation & Missing Facilities in Existing Secondary/Higher Secondary Schools in District Jacobabad (09 Units) (2016-17 Programme)" including electrification of GHBS Lal Bhatti (ADP No. 207, Serial No. 37) by the Executive Engineer, Education Works Electrical Division, Larkana. The complainant stated that he completed the work within the scheduled time and handed it over to the concerned department. He stated that despite submission of bills and repeated written requests as well as personal follow-ups with the Executive Engineer, Superintendent Engineer, and Chief Engineer, his lawful dues have not been paid. Due to non-payment, his firm has been sustaining financial losses. He, therefore, solicited intervention of this Office to get his grievance resolved.

PROCEEDINGS

2. After admission of complaint by condoning delay under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991, (amended up to date), as well as after receiving mandatory Affidavit on Form "A" and other relevant documents, report was called from the Agency. In response, the Executive Engineer, Education Works Electrical Division, Larkana, vide letter dated 09.12.2020, stated that the Government of Sindh, School Education and Literacy Department, had approved the scheme "Rehabilitation, Improvement/Renovation & Missing Facilities in Existing Secondary/Higher Secondary Schools, District Jacobabad (2016-17 Programme) (09 Units, ADP No. 207/2016-17)," which included GHBS Lal Bux Bhatti.

Contd.....

3. The total electrification cost of the 09 units was Rs. 4.291 million. A sum of Rs. 1.000 million was released and utilized by 30.06.2019. The scheme has since been phased out and is not active in the financial year 2020-21, and therefore, the office was not in a position to clear the contractor's outstanding dues, including the complainant's dues amounting to Rs. 0.412 million.

4. The Executive Engineer assured that as soon as funds are released by the Government of Sindh, the complainant's dues would be cleared on priority. The matter was also taken up with the Chief Engineer, Education Works Region, Sukkur, who failed to furnish a report despite repeated letters and reminders.

FINDINGS

5. I have examined the case file and perused correspondence, reports and rejoinders etc., and observed that:

- i) The Agency has admitted the complainant's claim but was unable to pay due to the old nature of the liability.
- ii) The Agency failed to process the complainant's claim for payment in a timely manner despite completion of the work and lapse of more than five years, which amounts to gross maladministration.
- iii) The complainant is legally entitled to receive the admitted dues without further delay.
- iv) The Agency has been found inefficient in settlement of the subject claim and requires immediate direction to release the outstanding payment.

DECISION

6. In view of the above, and in exercise of powers conferred under Section 11 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (as amended up to date), I direct the Secretary, Education and Literacy Department, Government of Sindh, Karachi, to address the grievance of the complainant and accord necessary sanction to ensure payment of the admitted outstanding dues as per applicable rules within 60 days from the date of receipt of this decision.

Given under my hand and seal of the office



Sd /-
(Muhammad Sohail Rajput)
Sitara-e-Imtiaz. PAS
Ombudsman Sindh

Karachi, dated 08, 01, 2026